

		or \$79,071.02, payable to the Aggrieved Employees in accordance with the terms of the Settlement Agreement as amended by Amendment No. 1. Within five (5) court days, Plaintiff's Counsel must submit a revised Proposed Order with the following revisions: 1. In ¶¶ 2 and 3, the ROA number of counsel's supplemental declaration to which Amendment No. 1 is attached should be inserted. 2. Paragraph 18 must be amended to accurately reference all installment payments owed by Defendant. Currently, the description omits reference to Installment Payment #12. The Final Accounting hearing is set for August 26, 2027, at 2:00 p.m. in Department CX102. Plaintiff's Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
115	Silva vs. Premier Chevrolet of Buena Park, LLC 2021-01218096	Motion for Approval of Class Settlement The joint Motion for Court Approval of the Parties' PAGA Settlement Approval filed by (1) Defendant Premier Automotive of Buena Park, LLC dba Premier Chevrolet of Buena Park (erroneously sued as Premier Chevrolet of Buena Park, L.L.C.); (2) Defendant Premier Automotive Management, LLC (erroneously sued as Premier Automotive Management, L.L.C. dba Premier Automotive) (collectively "Moving Defendants") and (3) Plaintiff Ronald Silva (collectively, "Moving Parties") is CONTINUED to August 27, 2026 at 2:00 p.m. in Department CX102 in order to give Moving Parties and their counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 8/2/2021, Plaintiff Ronald Silva, on behalf of himself and all others similarly situated, filed a Complaint for PAGA civil penalties for violations of the Labor Code, including failure to pay minimum wages, failure to pay overtime wages, failure to pay wages earned during employment, failure to pay meal and rest period premiums, failure to maintain accurate employment records, and failure to pay wages due upon separation of employment. (ROA #2.) Named Defendants are Premier Chevrolet of Buena Park, LLC; Premier Automotive Management, LLC; Premier Nissan of San Jose, LLC; Premier Automotive of Carlsbad, LLC; Premier Automotive HCDJ of

	California, LLC; Premier Automotive Imports of CA, LLC; Premier Automotive K of Carlsbad, LLC; Premier Automotive CJDR of Buena Park, LLC; Premier Automotive of CA, LLC; Premier Automotive of Claremont, LLC; Premier Automotive of Newark, LLC; Premier Automotive of Oakland PAH, LLC; Premier Automotive of Placentia, LLC; Premier Automotive of Seaside, LLC; Premier Automotive of Stevens Creek, LLC; and Premier Automotive of West Covina, LLC. On 3/23/2022, Plaintiff filed a Motion for Court Approval of the PAGA Settlement. (ROA #40.) On 5/2/2022, Plaintiff-Intervenor Celia Arreola (“Intervenor”) filed a Motion for Leave to Intervene. (ROA #54.) On 8/12/2022, the Court granted Intervenor’s motion (ROA #71), and a complaint-in-intervention was filed on 8/18/2022 (ROA #83.) Ultimately, at the 4/21/2023 continued hearing on the settlement approval motion, the Court denied the motion with prejudice. (ROA #127.) However, the Court stated that to the extent the parties reached a new settlement that was materially different from the terms and conditions of the rejected settlement, they could re-file the motion. (<i>Id.</i>) On 12/20/2024, Moving Defendants filed a Motion for Reconsideration, or, in the Alternative, to Vacate Order Granting Plaintiff Arreola’s Motion to Intervene. (ROA #146.) The motion was unopposed. (ROA #156.) On 3/7/2025, the Court denied the motion but, on its own motion, vacated the Court’s 8/12/2022 order granting Arreola’s motion to intervene in light of the California Supreme Court’s ruling in <i>Turrieta v. Lyft, Inc.</i> (2024) 16 Cal.5th 664, which held that a PAGA plaintiff does not have a right to intervene challenge the settlement in a separate PAGA action brought by a different employee. (ROA #161.) Accordingly, the Court ordered that Arreola’s complaint-in-intervention was stricken from the record. (<i>Id.</i>) On 1/16/2026, Moving Defendants and Plaintiff filed the instant Motion for Court Approval of the Parties’ PAGA Settlement, and submitted for the Court’s review the PAGA Settlement and Release of All Claims Agreement executed as of 11/14/2025 (“Settlement Agreement”) and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The instant motion seeks approval of the parties’ proposed settlement of Plaintiff’s PAGA claims for the non-reversionary gross settlement amount (GSA) of \$65,000. The Court has identified the following issues with the moving papers, which must be addressed by Moving Parties and their counsel before approval can be granted: 1. Although defense counsel’s declaration failed to attach proof of electronic service of the Settlement Agreement and the instant motion on the LWDA. (See ROA #194, ¶ 7 [missing Exh. F].) 2. The Court notes that the operative complaint names numerous defendants, but the Settlement Agreement and the instant motion involves only two defendants. Moving Parties must explain the status of the remaining named defendants and why they are not included by name in the Settlement Agreement and/or are not jointly moving for settlement approval.
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		3. The Settlement appears to propose that Moving Defendants self-administer the instant Settlement. What experience do Moving Defendants have in settlement administration? If address information is incorrect and checks are returned, will Moving Defendants propose to run a skip trace and re-mail them? Also, there are two Moving Defendants—will one of them self-administer the settlement for all Aggrieved Employees, or will each Moving Defendant self-administer as to its own employees? What if an employee worked for more than one Moving Defendant? Also, the moving papers are unclear as to whether Plaintiff’s counsel will play any role in overseeing Moving Defendants’ administration of the Settlement. Plaintiff’s counsel’s declaration attests that he “anticipate[s] another approximately 25-40+ hours of attorney time to be expended in obtaining final approval of the Settlement Agreement (including responding to inquiries from Class Members and overseeing the administration process), but these anticipated hours are not including in the billable hours listed [in counsel’s declaration].” (ROA #192, Pl.’s Counsel Decl., ¶ 34.) Given that this is a PAGA settlement, there is no separate process for “final approval” after the instant motion for approval. Moreover, this case involves only a PAGA claim, so there should be no “Class Members” involved. Therefore, this attestation appears to contain errors. Additionally, counsel attests to needing to “oversee[] the administration process,” but the Settlement appears to contemplate that Defendants will self-administer the settlement payments and does not provide for any oversight by Plaintiff’s counsel, so it is unclear what role Plaintiff’s counsel will play in the process. 4. The moving papers fail to provide the Aggrieved Employees’ estimated individual recovery under the proposed settlement, including the estimated average, low, and high payments. 5. Although the motion provides an estimate for the number of PAGA Aggrieved Employees, it fails to provide an estimate of the total number of PAGA pay periods. 6. A 180-day period, rather than a 120-day period, should be provided for Aggrieved Employees to cash their settlement payment checks. 7. The Court requires a detailed valuation analysis from Plaintiff’s counsel on why the settlement is fair, adequate, and reasonable in light of the strengths and weaknesses of the claims, which should specify (1) the maximum realistic recovery on each claim asserted in the operative complaint, including penalties (calculated based on number of workweeks, average daily pay rate, violation rate, etc.); (2) defenses asserted by Defendant; (3) a summary of the risks, expenses, and duration of further litigation if the settlement is not approved; (4) any other relevant factors justifying the settlement amount (e.g., Defendant’s financial condition); (5) the actual discount amounts applied to each claim for any defenses or risks; (6) the adjusted value of each claim after applying any discounts, and (7) an analysis of the GSA as a percentage of the maximum realistic recovery and the risk-adjusted recovery. 8. The effective date of the release is before Moving Defendants’ payment of the GSA, as the effective date of the release is “[u]pon approval by the Court of this Settlement,” whereas Defendants have
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		30 days after the Court’s approval to pay the GSA. (Settlement, ¶¶ 34, 39.) Plaintiff’s counsel must either explain why releasing the claims before settlement funds are fully paid is in the best interests of the Aggrieved Employees, or amend the settlement agreement to release claims only after Moving Defendants have fully paid the settlement funds. 9. The Settlement references a separate individual settlement agreement between Plaintiff and Moving Defendants. However, Plaintiff has not provided the Court with a copy of this separate individual settlement agreement. The Court must review this agreement as part of evaluating whether the instant PAGA settlement is fair, adequate, and reasonable. 10. Plaintiff’s counsel must provide evidence supporting the attorneys’ fee request in the form of time records or a summary of time spent on the substantive tasks, in order to enable the Court to evaluate the lodestar and fees claimed. 11. Plaintiff’s counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none. 12. Defense counsel makes no attestation on whether there are any concurrent pending cases involving similar claims against Moving Defendants that may be impacted by the settlement and how, or confirm that there is none. Plaintiff’s counsel attests that he is “aware of one related action to this matter and a Notice of Related Case was filed accordingly. The related matter is entitled <i>Arreola v. Premier Nissan of San Jose, et. al.</i>, Case No. 20CV369049. That action was filed in the Santa Clara County Superior Court.” (Pl.’s Counsel Decl., ¶ 40.) However, Plaintiff’s counsel attestation is inadequate because it does not explain the current status of the <i>Arreola</i> action. Moving Parties’ counsel must describe “the procedural status of the case[s]” and “describe[s] the impact of the settlement on th[ose] case[s],” as required by the Guidelines for Approval of Class Action Settlements & PAGA Settlements for Department CX102. Moving Parties and their counsel must also provide a revised notice/cover letter to aggrieved employees that will accompany the payment to them, with the following revisions: 5. The term “Defendants” is not appropriately defined in the notice/cover letter. The Settlement Agreement references only two defendants, while the caption of the case set forth in the notice/cover letter lists numerous other defendants. 6. The notice/cover letter should provide an upfront explanation of PAGA. 7. The notice/cover letter should describe the factual allegations of the operative complaint. 8. The notice/cover letter should describe the recipient’s responsibility for any taxes payable on the amount received. 9. The notice/cover letter should notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release.
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10. Instead of using the term “date of Final Judgment” throughout, the notice/cover letter should leave blank spaces for specifying the precise date.
11. The check validity period should be updated to 180 days in accordance with the Court’s order above.
12. The notice/cover letter erroneously states that uncashed checks will be sent to the “Department of Industrial Relations Unclaimed Wage Fund,” which no longer accepts uncashed checks. The provision must be amended to state that such funds will be paid to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees.

Moving Parties and their counsel must also provide a revised [Proposed] Order Approving PAGA Settlement and Judgment with the following revisions:

1. Moving Parties lodged a separate [Proposed] Order on Motion for Court Approval of PAGA Settlement (ROA #190) and a separate [Proposed] Judgment (ROA #197). The two should be combined into a single “[Proposed] Order Approving PAGA Settlement and Judgment.”
2. Attorney information must be deleted from the caption page.
3. The proposed order and judgment should identify the Settlement Agreement by its actual name.
4. The proposed order and judgment should actually attach the settlement agreement as Exhibit 1.
5. The proposed order and judgment should include the definitions of the Aggrieved Employees and the PAGA Period.
6. Moving Parties should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. Moving Parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date, which should also be specified in the proposed order and judgment.
7. The proposed order and judgment should state that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6.

The Court further refers Moving Parties and their counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Moving Parties must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and

		an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. Moving Defendants to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
116	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	1. Motion for Summary Judgment and/or Adjudication re: Tinnitus Treatment (ROA 1666) 2. Motion for Summary Judgment and/or Adjudication re: Electrocautery Device (ROA 1670) CONTINUED TO 6/18/26 AT 2PM ON COURT'S OWN MOTION